

Opinion of the Court

tions that would have been immune when Congress enacted §1983, deserve absolute protection from damages liability. *Id.*, at 508. “[T]he official seeking absolute immunity bears the burden of showing that such immunity is justified for the function in question.” *Burns v. Reed*, 500 U. S., at 486; *Antoine v. Byers & Anderson, Inc.*, 508 U. S. 429, 432, and n. 4 (1993). Even when we can identify a common-law tradition of absolute immunity for a given function, we have considered “whether §1983’s history or purposes nonetheless counsel against recognizing the same immunity in §1983 actions.” *Tower v. Glover*, 467 U. S., at 920. Not surprisingly, we have been “quite sparing” in recognizing absolute immunity for state actors in this context. *Forrester v. White*, 484 U. S. 219, 224 (1988).

In determining whether particular actions of government officials fit within a common-law tradition of absolute immunity, or only the more general standard of qualified immunity, we have applied a “functional approach,” see, e. g., *Burns*, 500 U. S., at 486, which looks to “the nature of the function performed, not the identity of the actor who performed it,” *Forrester v. White*, 484 U. S., at 229. We have twice applied this approach in determining whether the functions of contemporary prosecutors are entitled to absolute immunity.

In *Imbler v. Pachtman*, 424 U. S. 409 (1976), we held that a state prosecutor had absolute immunity for the initiation and pursuit of a criminal prosecution, including presentation of the State’s case at trial. Noting that our earlier cases had been “predicated upon a considered inquiry into the immunity historically accorded the relevant official at common law and the interests behind it,” *id.*, at 421, we focused on the functions of the prosecutor that had most often invited common-law tort actions. We concluded that the common-law rule of immunity for prosecutors was “well settled” and that “the same considerations of public policy that underlie the common-law rule likewise countenance absolute immu-